

Mahesh vs The State Of Karnataka on 21 April, 2023

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IN THE HIGH COURT OF KARNATAKA
AT KALABURAGI

DATED THIS THE 21ST DAY OF APRIL, 2023

BEFORE

THE HON'BLE MR. JUSTICE RAMACHANDRA D.HUDDAR

CRIMINAL REVISION PETITION NO.200051/2019

BETWEEN:

Mahesh S/o Hanamanthu,
Age : 31 years,
Occ: Coolie in Bricks Factory,
R/o Chintalkunta Village,
Tq. Gadwal, Dist : Mehboobnagar,
Now residing at L.B.S.Nagar,
Raichur.

... Petitioner

(By Sri Ishwraj S.Chowdapur, Advocate)

AND:

The State of Karnataka,
Through Netaji Nagar Police Station,
Raichur, represented by
Addl. State Public Prosecutor,
High Court of Karnataka,
Kalaburagi Bench - 584 101.

... Respondent

(By Sri Sharanabasappa M.Patil, HCGP)

This Criminal Revision Petition is filed under
Sections 397 and 401 of Cr.P.C. praying to set aside the
order of conviction passed by CJM at Raichur in

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C.C.No.181/2011 order dated 04.02.2016 which is confirmed by the Principal Sessions Judge at Raichur in Crl.Appeal No.9/2016 order dated 28.02.2019 and acquit the petitioner by allowing this revision petition of charges under Section 392 of IPC in the interest of justice and equity.

This criminal revision petition having been heard and reserved on 31.03.2023 coming on for pronouncement of orders, this day, the court made the following :

ORDER

Revision Petitioner-accused has filed this revision petition under Section 397 read with Section 401 of Cr.P.C being aggrieved by the concurrent findings with regard to his conviction and sentence passed in CC No.181/2011 dated 04.02.2016 by the CJM, Raichur and confirmed in Criminal Appeal No.9/2016 dated 28.2.2019 by the Prl.Sessions Judge, Raichur.

2. Parties to this revision are referred to as per their rank before the trial Court for the purpose of convenience.

3. The brief and relevant facts upto this revision are as under:

That, Police Circle Inspector, East Circle Raichur has filed charge sheet against the accused for the offence under Section 392 of IPC based on a complaint filed by complainant by name Vanaja D/o. Eshwarappa Raichur on 12.01.2011 at 7.30 p.m. She states in her complaint that, she is the resident of the address stated in the complaint. She is working as a Drawing teacher at Karnataka Welfare Trust School for the last seven years prior to filing of a complaint. Her school time starts at 9.30 a.m. and completes at 4.30 p.m. in the evening thereafter, she goes to her house.

She further states that, as usual on 12.01.2011, she attended her school. At about 3.15 p.m. she wanted to attend a meeting at Govt. Pre-University College regarding republic day. Therefore, herself and her school's Physical Education Teacher by name Smt. Saraswati came out of school and wanted to travel to the place of meeting in a rickshaw. Therefore, they were in search of an auto rickshaw outside their school from at a small distance. At that time, from the front side i.e. from Ambedkar Hostel side one person aged about 35 years wearing blue colour shirt and he was of black colour having good height and well built came to the complainant and tried to snatch her gold chain worn by her from her neck. He put his hands to snatch the golden chain but, complainant forcefully caught hold her chain. The said man dragged the chain and because of the same, it cut and some portion went in the hands of that man and remaining remained with complainant. As she wanted to attend an urgent meeting, she attended the said meeting and went to the house. After discussion with her brother-in-law Veeranagowda, she got weighed the said gold chain remained with her which found weighing 7.865 gms. and 2.135 grams was the subject matter of robbery valuing about 4 grams. Thereafter, she went to the Police Station and produced the same before the Investigating Officer and lodged a complaint as per Ex.P1 before PW.7 Basavaraj.

4. Based upon the said complaint PW.7 registered the crime in Crime No.2/2011, prepared the FIR as per Ex.P2 and set the criminal law in motion. He seized the cut golden chain produced by the complainant in the presence of Panchas by name Mareppa and Mahaboob, prepared the panchanama as per Ex.P2. The said cut chain is marked at MO No.1. Recorded the statement of goldsmith about weighing the said chain as per Ex.P4. Handed over investigation to PW.8 M.Pasha the then Circle Police Inspector.

5. This PW.8 on taking up investigation went to the scene of offence on 13.12.2011 and in the presence of Basavaraj and Nagappa prepared the scene of offence panchanama as per Ex.P5. On 4.2.2011, accused was arrested by his staff. He recorded the voluntary statement of accused. It reveals that accused has given his voluntary statement in CC No.891/11 as per Ex.P10. Accused has produced the cut chain before him and he seized the same under Ex.P3. Thereafter, recorded the statement of the witnesses and after completion of the investigation charge sheet was filed by the Investigating Officer.

6. The records reveal that the accused was in judicial custody in other criminal cases also.

7. After filing the charge sheet, the jurisdictional magistrate took the cognizance of the offence, by issuing body warrant presence of the accused was secured. Copies of the police papers were furnished to the accused as contemplated under Sec.207 of Cr.PC.

8. The learned jurisdictional Magistrate on hearing both the side, framed the charge against the accused for the offence under Sec.392 of IPC. Accused pleaded not guilty and claimed to be tried.

9. Before the trial Magistrate, to prove the case of the prosecution, prosecution in all examined 13 witnesses and got marked Ex.P1 to P10 with signatures thereon and MO No.1 the cut golden chain and closed prosecution evidence. After closure of prosecution evidence, the accused was questioned under Sec.313 of Cr.PC so as to enable him to answer the incriminating circumstances appearing in the evidence of the prosecution. He denied his complicity in the crime and did not choose to lead any defence evidence on his behalf.

10. The learned trial Magistrate on hearing the arguments and on perusal of the records found the accused guilty of the offence under Sec.392 of IPC and sentenced him as under:

"The accused for having committed the offence punishable under Sec.392 of IPC is sentenced to undergo imprisonment for a period of 04 years and to pay fine of Rs.5,000/- and also to pay the compensation of Rs.5,000/- to the victim who has suffered in this case i.e. complainant and in default of payment of fine to undergo SI for 06 months."

11. This judgment of conviction and sentence was challenged by the accused by preferring an appeal before the Prl. District and Sessions Judge, Raichur in Crl.Appeal No.9/2016. The learned first appellate Court after securing the records and on hearing both the side, confirmed the judgment of conviction and sentenced so passed against the accused as stated above.

12. It is this judgment of conviction and sentence passed by the trial Court affirmed by the first appellate Court is challenged in this revision on the following grounds:

- The judgment and conviction and sentence so passed by the trial Court and affirmed by the appellate Court is not proper and legal. • There is no proper appreciation of evidence by both the courts.
- One Smt. Saraswathi who accompanied the complainant has not identified the accused. • The ingredients of Sec.392 of IPC are not covered as per the complaint allegations. • The identification parade so conducted by PW.11 is not in accordance with law. • Recovery panchas have not supported the recovery.
- There is no corroborative evidence. Though the prosecution has failed to establish its case, but, the trial Court has convicted the accused and wrongly it is affirmed by the first appellate court.
- Hence amongst other grounds it is prayed to allow this revision and acquit the accused by giving benefit of doubt.

13. Before advertng to the other aspects of the case, it is quite right to discuss about commission of the offence of snatching away of golden chain worn by the complainant in the manner stated in the complaint. So to say, it is the prosecution to prove the same with legal evidence.

14. To prove the same, prosecution relied upon the copy of the complaint marked at Ex.P1 wherein the complainant has stated about snatching away of her golden chain by a person aged 35 years who was well built on 12.01.2011 at 3.00 p.m. when she was waiting for autorikshaw along with one Smt.Saraswathi. There was a seizure of cut chain as per Ex.P2 in the presence of Panchas being produced by the complainant. So also there was a seizure of cut chain on 4.2.2011 in the presence of panchas by the IO. The said witness Saraswathi had stated about snatching part of the golden chain of complainant. There is panchanama of scene of offence prepared by the IO as per Ex.P5. While marking these documents no little finger is raised by the defence.

15. The complainant and her friend Saraswathi have stated about fact of snatching away of gold chain by the person in their respective evidence. They say that, there was an attempt to snatch the said chain worn by the complainant, at that time, complainant forcefully caught hold her chain and because of such a dragging part of the chain was cut and taken away by the said person. These facts are not been denied by the defence in any manner. Thus, it is proved that there was snatching away of part of chain worn by the complainant by a person aged about 35 years who was well built.

16. Merely because the prosecution is able to prove the snatching away of the part of the golden chain worn by the complainant, it does not mean it is accused who has snatched the said chain and committed the offence of robbery. It is for the prosecution to prove the same beyond all reasonable doubt.

17. PW.1. being the complainant though corroborates the contents of the complaint in material particulars, but, she says that after two years of the incident, she was called to the police station and there she noticed the presence of her cut chain. She came to know the name of person who snatched was one Mahesh. This has been spoken to by her in her examination in chief. In the cross-examination she states that she saw the accused on the day of incident and thereafter, she is seeing the accused in the court on 28.7.2014 when she was called to the court to give evidence. She states that she has not stated the height of the accused, colour of the cloth being worn. She further states that when police gave the chain to her there were three chains. No injury was caused to her neck and there was no mark on her neck.

18. It is the case of the prosecution that, after the said commission of the offence, and when the accused was arrested, an identification parade was conducted in the jail and it was conducted by the then Tahsildar being the Executive Magistrate of Raichur on 22.11.2011.

19. PW.11 Madhukeshwar the then Tahsildar states in his evidence that, in all eight persons were made to stand and complainant identified the present accused. To that effect, he submitted report as per Exp8 along with his letter Ex.P9. Thus, according to the case of the prosecution there was ID parade conducted by PW.11 and complainant identified him. He has been thoroughly cross-examined.

20. Complainant PW.1 states that, the day on which her chain was snatched, he saw the accused and there after when she gave evidence she saw the accused. But, P.W.11 says on 22.01.2011, he conducted the identification parade. There is no corroboration of PW.1 and 11 with regard to the very conducting of the identification parade by this PW.11.

21. Section 9 of the Cr.PC speaks with regard to facts necessary to explain or introduce relevant facts. Thus the purpose of test identification parade is, to test and strengthen trustworthiness of the substantive evidence of a witness in Court. It is for this reason that test identification parade is held under the supervision of a Magistrate to eliminate any suspicion or unfairness and to reduce the chances of testimonial error as Magistrate is expected to take all possible precautions. The primary object of the test identification parade is, to enable the witness to identify the persons involved in the commission of offences if the offenders are not personally known to the witness. The whole object behind the test identification parade is, really to find whether or not the suspect is the real offender.

22. In this case as stated supra, the complainant never says that she went to the jail and identified the accused in the test identification parade. But, PW.11 says so. The friend of a complainant by name Saraswathi is examined in this case as PW.9 and she has not identified the accused as the person who committed the offence of robbery on the person of the complainant. She identifies the golden chain. She has been declared by the hostile witnesses but, she denies all the suggestions directed to her.

23. It is settled that human memory is apt to get dulled with a passage of time, it is desirable both in the interest of the honest witness and of a suspect himself that the latter should be put for

identification without any delay. Consequently, if an identification parade is not held, within a reasonable short period from the date of incidence it cannot be relied upon. Here in this case, PW. 1 has not identified the accused in the jail at the time of test identification parade and never says so about her identification. PW.9 having turned hostile. Only these two are the best witnesses to say that it is accused who committed the offence of robbery but, their evidence is not trustworthy, therefore, it cannot be accepted as truthful evidence.

24. PW.2 Mahaboob Ali Pancha to Ex.P2. He speaks that in his presence, complainant produced MO no.1 and police seized the same under Ex.P2. In the cross- examination he states, in about 25-30 criminal cases he acted as pancha. No photograph was taken when panchanama was written. It was written in Kannada language but do not know to read and write Kannada language. According to his evidence whenever Police call him he goes to the police station and act as pancha. From his evidence it appears that he is professional pancha. His evidence would not inspire any confidence as he being a professional pancha.

25. PW.3 Veeranagowda the brother-in-law of complainant is a hearsay witness and went to the police station to lodge complaint along with complainant. He is press reporter. Though he says about robbery of gold ornament, in the cross-examination, he states that said Mantralaya Road where the offence has taken place is a busy locality and always there is movement of the people there. Then, who snatched the gold chain of the complainant is a mystery in this case. As he is a hearsay witness, his evidence cannot be accepted to connect the accused in the commission of crime.

26. PW4 Amaresh is pancha to Ex.P3 PW.5 Chandru is also pancha to Exp4 but both have been turned hostile. Nothing worth has been elicited from the mouth of these witnesses. Therefore, evidence of PW. 4 and 5 would not help the case of the prosecution. PW.6 Basavaraj Basanna is pancha to Ex.P5. According to his evidence police came near his school and took his signature on Ex.P5. In the cross-examination he says that, he has not read the panchanama Ex.P.15 and he does not know the contents of the same. Such evidence spoken to by PW.6 his evidence cannot be accepted.

27. PW.7 Basavaraj was then ASI who received the complaint and set the criminal law in motion. His evidence can be accepted to the extent of receiving complaint. PW.8 M.Pasha was an Investigating Officer who conducted the panchanama of scene of occurrence as per Ex.P5 and filed the charge sheet. In all criminal cases, investigation officers are the supervisors of the investigation. In the absence of corroborative evidence, evidence of the Investigating Officer's become formal in nature. To the extent of conducting investigation, his evidence is to be accepted.

28. PW.9 as stated supra, a friend of complainant Saraswathi, her evidence can be accepted to the extent that she accompanied complainant and there was snatching of gold chain in part as stated by the complainant. So far other evidence spoken to by her as she has turned hostile, her evidence cannot be accepted. PW.10 is Mareppa pancha to Exp2 and he has been turned hostile therefore, his evidence cannot help the prosecution. PW.11 Madhukeshwara was Executive Magistrate and he has not followed the proper procedure as per the argument of the accused. In the absence of corroborative evidence, the very conducting of test identification parade, the evidence of PW.11

becomes formal and cannot be accepted as it is.

29. PW.12 M.D.Saleem is pancha to Ex.P3 seizure panchanama under which the gold chain was seized from the possession of accused as per the case of prosecution. But, he has been turned hostile. Because of hostility of PW.12 no evidentiary value can be attached to his evidence.

30. P.W.13 Gopala Reddy was a P.C. He speaks that on 5.2.2011, at about 6.30 p.m., as he was deputed to search the accused, he was in search of accused and he was accompanied with CW.11 to 14. When they went towards Chandra Bhandra Road, there they noticed running away of one person and he was caught hold. On enquiry he revealed his name and also admitted commission of robbery of a 8000, 1500 so also mobile phone etc. He also confessed snatching of gold chain. According to his evidence, on arrest, accused has produced all these material objects. It is stated by him in the cross- examination that in Ashraya Colony there are number of houses. Accused did not run away towards the said colony and all the police officers did not chase him and caught hold. He has denied all the suggestions.

31. Except the evidence of PW.13, there is no evidence about recovery of golden chain from the possession of the accused. When there is a specific allegation of snatching away of golden chain worn by the complainant, and subsequently there is a recovery of the same based upon the confession statement, it is the duty of the prosecution to prove that, the disclosure statement leading to discovery of stolen articles is at the instance of the accused and accused alone. Here the statement of the witnesses to recovery shows that there is no supportive evidence with regard to the recovery of cut golden chain from the possession of the accused. Even the confession statement alleged to have been recorded in the some other criminal case, in the absence of corroborative evidence in this case is not admissible in evidence. The evidence as to the presence of accused near the place of occurrence is doubtful in view of the evidence of Veeranagowda the brother of the complainant who has stated that, Mantralaya Road is a busy road and there is movement of number of people there. Therefore, the evidence in this case is not sufficient to connect the accused to the crime.

32. Section 390 of IPC defines 'Robbery'. In all robbery, there is either theft or extortion. 'Theft' is 'robbery', if in order to committing of the theft or in committing the theft or in carrying away or attempting to carry away property obtained by the theft, the offender for that end, voluntarily causes or attempts to cause to any person death or hurt or wrongful restraint or fear of instant death or instant hurt, or of instant wrongful restraint.

33. When 'Extortion' is 'Robbery' - Extortion is robbery if the offender at the time of committing the extortion is in the presence of the person put in fear and commits the extortion by putting that person in fear of instant death, or instant hurt, or of instant wrongful restraint to that person or to some other person, and, by so putting in fear, induces the person so put in fear then and there to deliver of the thing extorted. The offender is said to be present if he is sufficiently near to put the other person in fear of instant death, of instant hurt, or of instant wrongful restraint.

34. In this case, none of the ingredients of robbery have been spoken to by any of the witnesses. Identity of the accused is not proved. Recovery of the gold ornaments which is alleged to have been

snatched away have been done after two years as per the evidence of the prosecution. So therefore, in this case except the evidence of the complainant which is not trustworthy, prosecution has not placed any acceptable evidence so as to connect the accused in the commission of the crime. Most of the witnesses have been turned hostile.

35. As stated supra, recovery is not proved as contemplated under the provisions of the Indian Evidence Act that too from the possession of the accused. Based upon a bald and inconsistent evidence of complainant and the evidence of the Investigation Officers, it cannot be stated that prosecution is able to prove the guilt of the accused beyond all reasonable doubt. If all these factual features are put together, there arise a doubt in the case of prosecution and that benefit of doubt has to be given to the accused.

36. The learned trial Court and the first appellate Court have not applied their judicious mind and there is wrong appreciation of the evidence spoken to by the witnesses. Merely because snatching away of part of the gold chain is proved by the prosecution, unless recovery is proved from the possession of the accused at an earliest point of time, one cannot connect the accused as the real offender. Accused was involved in other crimes and during the course of the investigation of the other cases, it was revealed about the present crime. In view of this, the false implication of the accused in the present crime cannot be ruled out. These facts have been lost sight by the trial Magistrate as well as the first appellate Court.

37. In view of all these factual features, the judgment of conviction and sentence passed by the trial Magistrate in the aforesaid criminal case and affirmed by the first appellate court in the said criminal appeal are liable to be set-aside and benefit of doubt is to be extended to the accused person. Consequently he has to be acquitted by giving benefit of doubt.

Resultantly, the following order is passed:

ORDER The Revision petition filed by the petitioner under Sec.397 Cr.PC read with 401 of Cr.PC is allowed.

Judgment of conviction passed by the CJM, Raichur in C.C.No.181/2011 dated 4.2.2016 affirmed by the Prl. Sessions Judge, Raichur Crl.Appeal No.9/2016 dated 28.02.2019, are hereby set aside.

Consequentially, accused is acquitted of the charges leveled against him for the offence under Sec.392 of IPC. His bail bond stands cancelled. He is set at liberty.

Intimate the Prl. District and Sessions Judge, Raichur and CJM, Raichur regarding acquittal of the accused forthwith through mail so as to take proper steps to release him in this case forthwith if not required in any other case.

Send back the trial court records and the first appellate court records forthwith with a copy of the order passed in this revision.

SD/-

JUDGE Sk/-